



CHAPTER xxvii

An Act to extend the boundaries of the county borough of Gateshead and for purposes incidental thereto.

[14th July 1953.]

WHEREAS the existing county borough of Gateshead (in the preamble to this Act called "the borough") is a county borough subject to the jurisdiction of the mayor aldermen and burgesses of the borough (hereinafter called "the Corporation"):

And whereas the borough now comprises the parish of Gateshead such parish being co-extensive with the borough:

And whereas the urban district of Felling in the administrative county of Durham adjoins the borough:

And whereas it is expedient that the boundaries of the borough and of the parish of Gateshead should be altered and extended so as to include therein part of the said urban district of Felling (which is in this Act referred to as "the added area"):

And whereas the unrepealed provisions of the local Acts Provisional and other Orders specified in Parts I and II respectively of the First Schedule to this Act are immediately prior to the passing of this Act in force in the borough:

And whereas it is expedient that the other provisions contained in this Act be enacted:

And whereas the objects aforesaid cannot be attained without the authority of Parliament:

And whereas in relation to the promotion of the Bill for this Act the requirements of Part XIII of the Local Government Act 1933 have been observed:

May it therefore please Your Majesty that it may be enacted and be it enacted by the Queen's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows (that is to say):—

Preliminary

- Short title. 1. This Act may be cited as the Gateshead Extension Act 1953.
- Interpretation. 2.—(1) In this Act unless the subject or context otherwise requires—
- “ Act of 1894 ” “ Act of 1929 ” “ Act of 1933 ” and “ Act of 1948 ” mean respectively the Local Government Act 1894 the Local Government Act 1929 the Local Government Act 1933 and the Local Government Act 1948 ;
 - “ Act of 1936 ” means the Public Health Act 1936 ;
 - “ added area ” means so much of the urban district of Felling as is coloured pink on the borough map and is described in the Second Schedule to this Act ;
 - “ appointed day ” means the first day of April nineteen hundred and fifty-four ;
 - “ borough ” means before the appointed day the existing borough of Gateshead and on and after the appointed day the existing borough of Gateshead as extended by this Act ;
 - “ borough map ” means the map marked “ Map of the county borough of Gateshead as extended by the Gateshead Extension Act 1953 ” and signed in triplicate by the Right Honourable the Lord Merthyr the Chairman of the Committee of the House of Lords to whom the Bill for this Act was referred one copy of which has been deposited in the Parliament Office of the House of Lords one in the Private Bill Office of the House of Commons and one with the town clerk at his office ;
 - “ Corporation ” means the mayor aldermen and burgesses of the borough ;
 - “ council ” means the council of the borough ;
 - “ county ” and “ county council ” mean respectively the administrative county of Durham and the county council of that county ;
 - “ enactment ” includes any public general local or private Act and any Order or other instrument having the force of an Act ;

- “existing” in relation to any area altered by this Act means existing immediately before the appointed day ;
- “general rate fund” and “general rate” mean respectively the general rate fund and the general rate of the borough ;
- “local Acts” means the local Acts specified in Part I of the First Schedule to this Act the Orders specified in Part II of that schedule and so much of the confirmation Acts specified in that Part as relates to those Orders ;
- “mayor” means the mayor of the borough ;
- “Minister” means the Minister of Housing and Local Government ;
- “Public Health Acts” means the Public Health Act 1875 and the Acts amending and extending the same prior to the Act of 1936 ;
- “Provisional Order” includes a Special Order and any order having the effect of an Act of Parliament ;
- “Rating Act” means the Rating and Valuation Act 1925 ;
- “revenues of the Corporation of the existing borough” and “revenues of the Corporation of the borough” include respectively the general rate fund and all rates exchequer contributions and other revenues whether arising from any land or undertaking or from any other source receivable by the Corporation ;
- “town clerk” means the town clerk of the borough ;
- “urban district” and “urban council” mean respectively the urban district of Felling and the urban district council of that district.

(2) Any reference in this Act to any enactment shall be construed as a reference to that enactment as applied extended amended or varied by or by virtue of any subsequent enactment including this Act.

3. Save as otherwise expressly provided and except so far as Commence-
there may be anything in the subject-matter or context in- ment of Act.
consistent therewith this Act shall come into operation on the
appointed day :

Provided that for the purposes of—

- (a) the preparation of any register of local government electors to be published in the year nineteen hundred and fifty-four ;
- (b) any election under the Act of 1933 for any area consisting in whole or in part of any area affected by this Act held on or after the sixteenth day of March nineteen

hundred and fifty-four and proceedings preliminary or relating thereto and the qualification of candidates for election at any such election ; and

- (c) the preparation of any precept or contribution order to be issued or made in respect of any period commencing on or after the appointed day ;

this Act shall operate from the date of its passing.

Extension of borough

Extension of
borough.

4.—(1) The boundary of the existing borough the area whereof is included within the outer edge of the red line on the borough map shall be altered so as to include in addition to that area the added area.

(2) The boundary of the borough shall be that shown by the inner edge of the blue line on the borough map and the whole of the area within that boundary shall for all purposes be the borough and county borough of Gateshead.

(3) If there is any discrepancy between the borough map and the description set out in the Second Schedule to this Act the said description shall prevail.

Alteration of
parishes.

5. The added area shall be added to and form part of the existing parish of Gateshead and shall be separated from the existing parish of which it now forms part.

Borough map.

6.—(1) Copies of the borough map deposited with the town clerk and certified by him to be true shall be sent by him as soon as may be after the passing of this Act to the clerk to the county council to the clerk to the urban council to the Board of Inland Revenue to the Commissioners of Customs and Excise to the Registrar-General to the Board of Trade to the Minister to the Minister of Health to the Minister of Transport to the Minister of Fuel and Power to the Minister of Agriculture and Fisheries to the Postmaster-General and to the Boundary Commission for England.

(2) Copies of or extracts from the borough map deposited with the town clerk and certified by him to be true shall be received in all courts of justice and elsewhere as prima facie evidence of the contents of the map so far as it relates to the boundary of any area altered by this Act.

(3) The borough map deposited with the town clerk shall at all reasonable times be open to inspection by any person liable to any rate leviable within the borough and any such person shall be entitled to a copy of or extract from the map certified by the town clerk to be true on payment of a reasonable fee to be determined by the Corporation.

(4) All fees so received shall be carried to the general rate fund.

Provisions consequent on extension

7. Subject to the provisions of any scheme or Order in Council made under the provisions of section 8 (Alteration of wards) of this Act the persons who hold office immediately before the appointed day as mayor aldermen and councillors of the existing borough shall on the appointed day become the mayor aldermen and councillors of the borough but shall respectively retire from office on the day on which they would have retired from office if this Act had not been passed. Existing mayor aldermen and councillors.

8.—(1) This section shall come into operation on the date of the passing of this Act but any scheme or Order in Council made under the provisions hereinafter mentioned as applied by this section shall not take effect until the appointed day except for the purposes of any election of councillors which may be required by such scheme or Order in Council. Alteration of wards.

(2) The council shall not later than the first day of November nineteen hundred and fifty-three or such later date as the Secretary of State may allow present a petition under and in accordance with the provisions of section 25 of the Act of 1933 praying for any of the things mentioned in paragraphs (b) (c) (d) and (e) of subsection (1) of that section :

Provided that for the purposes of this section proposals which provide for an increase in the number of the wards of the borough without any alteration of the boundaries of the wards of the existing borough shall be deemed to be proposals to give effect to the prayer of a petition for an alteration of the number and of the boundaries of the wards of the borough.

(3) Failing presentation by the council of a petition under subsection (2) of this section section 25 of the Act of 1933 shall have effect as if such a petition had been presented by the council to Her Majesty and the requirements of subsection (1) of the said section 25 had been complied with and the petition stood referred to the Secretary of State.

9. For the purposes of the application to the borough of the provisions of paragraph (c) of section 57 of the Act of 1933 the added area shall be deemed to have always formed part of the borough. Qualification for election and office.

10. The added area shall be separated from the electoral division of the county of which it forms part and the councillor of the county who immediately before the appointed day represents the Felling No. 2 electoral division shall be deemed to have been elected to represent that division as altered by this Act and shall retire on the day on which he would have retired if this Act had not been passed. County electoral divisions.

Jurisdiction
powers and
duties of
justices etc.
extended.

11.—(1) Subject to the provisions of this section the powers and duties of the justices of the peace for the existing borough and of the police constables and other peace officers of the existing borough shall extend to and apply throughout the borough in relation to any matter whether arising before or after the appointed day:

Provided that—

- (a) every person alleged to have committed an offence in any part of the added area prior to the appointed day shall be tried and dealt with as if this Act had not been passed;
 - (b) every proceeding which prior to the appointed day has been begun or is pending before any justices in relation to any matter arising in or concerning any part of the added area may be continued or completed in like manner and with the like incidents and consequences as nearly as may be as if this Act had not been passed.
- (2) The powers and duties of the clerk to the justices of the peace for the existing borough shall extend to and apply throughout the borough.
- (3) The added area shall cease to form part of any petty sessional division of the county.
- (4) (a) Where immediately before the appointed day a probation order made or having effect as if made under section 3 of the Criminal Justice Act 1948 is in force and the probationer is residing in any part of the added area the supervising court may if a petty sessional division of the county is named in the order amend the order under paragraph 2 of the First Schedule to that Act as if the probationer had changed his residence.
- (b) Nothing in the proviso to subsection (1) of this section shall be construed in relation to any probation order whenever made as preventing the justices of the peace for the borough as the supervising court from dealing with the probationer in pursuance of any power conferred upon them by the said Act of 1948.
- (5) Where immediately before the appointed day a provisional grant of a justices' licence or of an authority for the ordinary removal of a justices' licence has been made under section 33 of the Licensing (Consolidation) Act 1910 in respect of premises about to be constructed or in the course of construction in the added area such provisional grant shall be deemed to have been made by the licensing justices for the borough:

Provided that where immediately before the appointed day such provisional grant awaits confirmation any order of confirmation in respect thereof shall be made as if this Act had not been passed.

12. Subject to the provisions of any order which may be made by the county council under section 141 of the Act of 1933—

District
councillors and
continuance of
urban council.

(a) the persons who immediately before the appointed day are the urban district councillors for the existing urban district shall continue to represent the urban district as altered by this Act on the urban council until the day upon which they would have gone out of office respectively if this Act had not been passed ; and

(b) the urban council shall continue and shall be deemed to have been elected for and shall be the urban district council for the urban district as altered by this Act.

13. Any casual vacancy which may exist on the sixteenth day of March nineteen hundred and fifty-four in the office of borough councillor county councillor or urban district councillor for any ward or electoral division which by virtue of this Act is altered shall be deemed to exist in the office of councillor for that ward or electoral division as altered by this Act.

Casual
vacancies.

14. Subject to the provisions of this Act all property immediately before the appointed day vested in the Corporation for the benefit of the existing borough (not being property held for any charitable trust) shall by virtue of this Act be held by the Corporation for the benefit of the borough and the Corporation shall hold enjoy and exercise for the benefit of the borough all the powers which immediately before that day are exercisable by or vested in the Corporation for the benefit of the existing borough and all liabilities which immediately before the appointed day attach to the Corporation in respect of the existing borough shall on that day attach to them in respect of the borough.

Corporation
property
liabilities etc.

15. So much of any sums borrowed by the Corporation or by their predecessors as immediately before the appointed day is owing and charged upon a fund or rate of the existing borough or the revenues of the Corporation of the existing borough shall be charged upon the revenues of the Corporation of the borough and all interest due on any such moneys outstanding at any time shall be paid out of the revenues of the Corporation of the borough.

Loan debts of
Corporation.

16. Subject to the provisions of this Act and to any necessary adjustments thereunder—

Loan debts of
county and
urban councils.

(1) The liability for repayment of so much of any moneys borrowed by the county council or by the urban council or their respective predecessors for a purpose relating exclusively to the added area or any part thereof as immediately before the appointed day is owing and for

the payment of the interest thereon shall by virtue of this Act be transferred to and attach to the Corporation:

- (2) So much of any moneys borrowed as aforesaid as immediately before the appointed day is owing shall by virtue of this Act be charged upon the revenues of the Corporation of the borough:
- (3) Nothing in this Act shall prejudice or affect the validity of any mortgage or other security which has been granted in respect of any borrowed moneys the liability for the repayment of which is transferred to the Corporation by subsection (1) of this section or prejudice or diminish the powers of any person entitled under any such mortgage or other security to enforce the same as if this Act had not been passed and where for any such purpose it is necessary to continue the exercise of a power which would have existed but for this Act the power may continue to be exercised as if this Act had not been passed and the general rate shall for any such purpose be levied and have effect in substitution for the rate which would have been leviable if this Act had not been passed.

Property etc. of
county council
and urban
council.

17. Subject to the provisions of this Act and to any necessary adjustments—

- (1) The Corporation shall hold for the benefit of the borough all property transferred to them by virtue of this section and all liabilities transferred to the Corporation by virtue of this section shall attach to them in respect of the borough:
- (2) (a) Any property or liabilities which immediately before the appointed day are vested in or attach to the county council or the urban council in relation exclusively to any portion of the added area shall by virtue of this Act be transferred to and vest in or attach to the Corporation and shall be a matter for adjustment under this Act;
(b) Any property or liabilities which immediately before the appointed day are vested in or attach to either of the said councils in relation to any portion of the added area conjointly with any other area shall be a matter for adjustment under this Act.

As to roads in
added area.

18. All roads within the added area which immediately before the appointed day are vested in the county council and all roads within such area which immediately before that day are vested in the urban council shall be transferred to and vested in the Corporation.

19. The county council the standing joint committee of the county the police authority of the county and the urban council shall cease to exercise any powers or discharge any duties within any part of the added area. Powers of county and urban councils etc.

20. Subject to the provisions of this Act—

Local Acts.

(1) The unrepealed provisions of the local Acts and of any other local Act or of any Provisional Order affecting the existing borough or the Corporation thereof so far as the same respectively are in force within the existing borough immediately before the appointed day shall extend and apply to the borough and any reference in any such Act or Order to the existing borough and the Corporation thereof shall be deemed to refer to the borough and the Corporation thereof:

(2) The provisions of any protective section in any local Act or any Provisional Order for the benefit of the county council or of the urban council or of the police authority of the county or their respective predecessors contained in any local Act confirmation Act or Provisional Order by whomsoever obtained so far as they relate to or affect any part of the added area shall enure on and after the appointed day to the benefit of the Corporation and shall be construed as if a reference to the Corporation were substituted for any reference to any such council or authority or their predecessors as the case may be.

21. The provisions of section 37 (As to public lamps) of the Newcastle-upon-Tyne and Gateshead Gas Act 1896 shall not apply to the added area or any part thereof. Saving for Northern Gas Board.

22.—(1) Subject to the provisions of subsection (2) of this section— Adoptive Acts.

(a) the provisions of any public general Act in force throughout the existing borough by virtue of an adoption by the council or their predecessors and any order in force under such Act throughout the existing borough shall apply to the borough ;

(b) the provisions of any public general Act in force in the added area or any part thereof by virtue of an adoption by the county council or the urban council or their predecessors and any order in force under such Act in the added area shall cease to have effect in relation to such area.

(2) This section shall not apply to any order made under the Public Health Acts Amendment Act 1907 or the Public Health Act 1925.

As to schemes
under
Employment
and Training
Act 1948.

23. Any scheme made by the county council and approved by the Minister of Labour and National Service under section 10 of the Employment and Training Act 1948 and in force in the county shall cease to apply to the added area.

As to local
valuation
panels scheme.

24. References in the County of Durham Joint Local Valuation Panels Scheme 1948 (made in pursuance of powers conferred by section 45 of the Act of 1948) or in the schedules thereto to the borough and to the urban district shall be deemed to be references to the borough as extended and to the urban district as altered by this Act.

Orders under
Shops Act
1950.

25. Any order which is in force under the Shops Act 1950 immediately before the appointed day in any area affected by this Act shall subject to the provisions of the Shops Act 1950 remain in force and apply to the area to which it applied immediately before the appointed day.

Orders under
Wild Birds
Protection Acts.

26. Any order which is in force under the Wild Birds Protection Acts 1880 to 1939 immediately before the appointed day in the existing borough shall extend to the added area and any order which is then in force under those Acts in the county shall cease to extend to the added area.

Sunday
Entertainments
Act 1932.

27. Section 1 of the Sunday Entertainments Act 1932 shall as from the appointed day extend to the borough as before that day it extended to the existing borough.

Transfer of
duties under
section 1 of
Children Act
1948.

28.—(1) The provisions of this section shall apply in the case of a child who is on the appointed day in the care of a local authority and who was when received into care under subsection (1) of section 1 of the Children Act 1948 ordinarily resident in the added area. Any question arising under this subsection as to the ordinary residence of a child shall be determined as though it arose under subsection (4) of section 1 of the said Act of 1948.

(2) The Corporation may take over the care of a child with the concurrence of the local authority in whose care he then is.

(3) A local authority with a child in their care may recover from the Corporation any expenses in respect of the child duly incurred under Part II of the said Act of 1948 by them on or after the appointed day (including any expenses so incurred after he has ceased to be a child within the meaning of the said Act and if the Corporation take over the care of him including also any travelling or other expenses incurred in connection with the taking over).

(4) Where the care of a child is taken over from another local authority under subsection (2) of this section the provisions of the said Act of 1948 shall apply as respects that child as though he

were in the care of the Corporation under section 1 of the said Act and any resolution with respect to him passed by that other local authority under section 2 of the said Act and still in force shall as from the date on which his care was taken over be deemed for the purposes of all the provisions of the said Act of 1948 relating to such a resolution to have been passed by the council.

29. Subject to the provisions of any order which the Minister may hereafter make the provisions of any order made before the passing of this Act by the Local Government Board the Minister of Health the Minister of Local Government and Planning or the Minister and conferring upon the council of the existing borough any powers relating to the matters mentioned in section 33 of the Act of 1894 or in section 271 of the Act of 1933 and in that order so far as such powers are still in force or still have effect shall be deemed to have effect as if any reference in those provisions to the existing borough the council of the existing borough and the existing parish of Gateshead extended and applied respectively to the borough the council of the borough and the parish of Gateshead as extended by this Act.

Orders under
section 33
of Act of 1894
and section 271
of Act of 1933.

30. Subject to any order which the Minister or the Secretary of State may make on or after the appointed day the following provisions shall have effect as regards orders under the Public Health Acts Amendment Act 1907 or the Public Health Act 1925:—

Orders under
Public Health
Acts
Amendment
Act 1907 or
Public Health
Act 1925.

- (a) The provisions of any order made before the appointed day and declaring to be in force throughout the existing borough any parts or sections of either of those Acts shall have effect as if any reference in that order to the existing borough extended and applied to the borough and as if such parts or sections were accordingly declared to be in force in the borough ;
- (b) The provisions of any other order under either of the said Acts which is in force immediately before the appointed day throughout the existing borough shall extend and apply to the added area ;
- (c) The provisions of any order made before the appointed day and declaring to be in force in any part of the added area any parts or sections of either of the said Acts shall cease to apply to such part of the added area and the parts or sections declared by any such order to be in force shall (save as in this section provided) cease to be in force within such part of the added area but this section shall not prejudice or affect any proceedings which are pending on the appointed day.

Byelaws
regulations
and scales of
charges.

31.—(1) All byelaws made by the Corporation or the watch committee of the existing borough and in force immediately before the appointed day shall apply to the borough until repealed or altered and any byelaw made by the county council the Standing Joint Committee of the county the police authority of the county or the urban council and in force immediately before the appointed day shall on that day cease to apply within the added area.

(2) Any proceedings which if this Act had not been passed might have been taken for any offence against any byelaw committed before the appointed day within the added area may be taken by the Corporation.

(3) In this section “byelaws” includes any regulation scale of charges list of tolls or table of fees or payments.

Licences
certificates
exemptions
and permits.

32. Any licence certificate exemption or permit granted or issued by an authority to any person residing in or in respect of any property matter or thing within the added area and subsisting at the appointed day which could have been granted or issued by the Corporation or some other authority for the same purpose to any person residing in or in respect of any property matter or thing within the existing borough shall continue in force for the period for which it was granted or issued as fully and effectively as if it had been granted or issued by the Corporation or such other authority.

Schemes under
Education Acts
1944 to 1948.

33. The Durham County Council Divisional Administration Scheme 1945 and any scheme amending that scheme and any other scheme made by the county council and approved by the Minister of Education under the Education Acts 1944 to 1948 shall cease to have effect in the added area.

Burial
board.

34.—(1) The added area shall be included within the limits for which the Corporation act as burial board.

(2) Nothing in this Act shall prejudice or affect any right of burial or of constructing a burial place or of erecting or placing any monument tablet gravestone or inscription which any person may have acquired before the appointed day or prejudicially affect any right privilege or authority which immediately before the appointed day is exercisable by or attaches to any incumbent or sexton under the Burial Acts 1852 to 1906.

Executive
councils.

35.—(1) The Minister of Health may by order made before the appointed day make such provision as seems to him expedient for all or any of the following matters:—

(a) for providing that the names of medical practitioners who immediately before the appointed day are providing general medical services in the added area under

the National Health Service Act 1946 shall be included in the medical list of the executive council of the borough ;

- (b) for providing that the alteration of the boundaries of the borough authorised by this Act shall not affect any services under Part IV of the said Act of 1946 which have been commenced but not completed before the appointed day ;
- (c) for providing for the transfer to the executive council of the borough of any property rights or liabilities of the executive council of the county which relate exclusively to the added area ;
- (d) for the making of financial adjustments between the said executive councils ;
- (e) for providing that the executive council of the county shall continue to act as the executive council for the added area until such date as may be specified in the order not being later than the thirty-first day of December nineteen hundred and fifty-three ; and
- (f) for any supplementary or incidental matters.

(2) Any order made under this section may be revoked or varied by a subsequent order of the Minister of Health made before or after the appointed day.

(3) Subject to any order made under this section the persons who immediately before the appointed day are members of the respective executive councils of the county and the borough shall be deemed to have been appointed as and shall be members of the respective executive councils of the county and the borough as altered by this Act.

Officers

36.—(1) The town clerk and all other officers of the Corporation of the existing borough who hold office immediately before the appointed day shall continue to be the town clerk and officers of the Corporation of the borough and shall hold their offices by the same tenure as before that day.

Officers of
Corporation
continued.

(2) In this section the expression " officer " includes a servant.

Supplementary provisions

37. For the purposes of all valuation lists of the borough under the Rating Act the amount of the deduction to be made under paragraph (c) of subsection (1) of section 22 of that Act from the net annual value of such rateable hereditaments within the added area as are included in class (3) of the hereditaments specified in column (1) of Part II of the Second Schedule to that Act shall notwithstanding the provisions of any Act be twenty-five per centum.

Deduction in
ascertaining
rateable value
of land covered
with water etc.

Rating areas
and valuation
lists.

38.—(1) The added area shall be deemed to form part of the rating area of the borough.

(2) The valuation list of the existing borough and the portion of the valuation list of the urban district which relate to hereditaments within the added area (modified as may be necessary to give effect to the provisions of the last preceding section of this Act) shall together form the valuation list of the borough as from the appointed day.

(3) The portion of the valuation list of the urban district which relates to that district as altered by this Act shall be the valuation list of that district as from the appointed day.

Financial
adjustments.

39. Where in consequence of any alteration of areas or authorities made by this Act any adjustment of any property income debts liabilities or expenses so far as they are affected by the alteration is required an adjustment shall be made between the councils or other authorities affected under and in accordance with section 151 of the Act of 1933 as if this Act were an order made under Part VI of that Act.

Adjustment for
purposes of
licensing.

40.—(1) An equitable adjustment shall be made between the county and the borough respecting the interest of the added area in any compensation fund constituted under section 21 of the Licensing (Consolidation) Act 1910 or under any enactment repealed by that Act.

(2) Such adjustment shall be made by agreement between the compensation authority (as defined by Part II of the Licensing Act 1949) for the county and for the borough within twelve months from the appointed day or such extended period as may be allowed by the Secretary of State or in default of agreement by an arbitrator appointed by the Secretary of State.

(3) For the purpose of such adjustment section 151 of the Act of 1933 shall apply subject to the modification that the arbitrator shall be appointed by the Secretary of State instead of by the Minister.

Jury service.

41. For the purpose of summoning jurors and of jury service any parish affected by this Act shall be deemed to continue unaltered until a new jurors' book for the parish as altered comes into force.

Local
land charges
registers.

42.—(1) The local registrars for the county and for the urban district respectively under the Land Charges Act 1925 and the rules made thereunder shall within one month after the appointed day supply to the local registrar for the borough an office copy of every entry in the local land charges register relating to any

land situate within the added area and shall be paid by the Corporation in respect thereof such fees as are prescribed by the said rules.

(2) The local registrar for the borough shall within one month after the receipt of the office copies mentioned in subsection (1) of this section enter the same with any necessary modifications in the appropriate part of the local land charges register of the borough.

(3) Until the entries are made as aforesaid or until the expiration of two months from the appointed day whichever be the earlier the following provisions shall have effect in respect of all land within the added area:—

- (a) The local registrar for the borough shall give notice to any person desiring to make a personal search that an additional search should be made in the register for the urban district and in the register for the county;
- (b) Where application is made for an official search the local registrar for the borough shall issue free of charge a certificate of official search in the register of the borough and shall forward to the local registrar for the urban district the application received by him together with the fees paid in respect thereof and shall also forward to the local registrar for the county a copy of the application;
- (c) The local registrars for the urban district and for the county shall permit and make such searches and furnish such office copies and certificates as they would have been required to permit make and furnish and shall in relation thereto have the same powers and be subject to the same obligations as if this Act had not been passed;
- (d) The fees in respect of searches permitted or made and in respect of certificates furnished by the local registrar for the county in pursuance of the provisions of paragraph (c) of this subsection shall be paid by the Corporation;
- (e) Where an entry of a local land charge which has been duly made in the local land charges register of the county or of the urban district is required by this section to be transferred from the register of the county or the urban district to the register of the borough such charge shall not be void as against a purchaser for money or money's worth of a legal estate in the land affected thereby by reason only that it has not been entered in the register of the borough.

Town planning. **43.**—(1) As from the passing of this Act the Corporation shall be entitled at all reasonable times to inspect and take copies of all plans or documents relating to any land within the added area which are in the possession or under the control of the county council or the urban council for the purposes of or in connection with the Town and Country Planning Act 1947 and the county council and the urban council shall supply to the Corporation such information and shall afford to them such assistance for the purposes of or in connection with the said Act as the Corporation may reasonably require.

(2) An office copy of every entry in the register relating to any land within the added area kept by the county council under section 14 of the said Act of 1947 shall within one month after the appointed day be supplied to the town clerk by the clerk of the county council or the clerk of the urban council having the custody of that part of the register in which the entry appears as the case may be.

(3) The town clerk shall within one month after the receipt of the office copy mentioned in subsection (2) of this section enter the same or cause the same to be entered with any necessary modifications in the register kept by the Corporation under section 14 of the said Act of 1947.

(4) Any application for planning permission or for any consent or approval under the said Act of 1947 or for a determination under section 17 of that Act made to the county council or the urban council on their behalf before the appointed day and not determined before that day shall so far as it relates to land within the added area be treated as a like application made to the Corporation and shall be treated as having been so made on the appointed day:

Provided that it shall not be necessary for the Corporation to consult with any authority person or body with whom consultation has already taken place in relation to that application.

(5) Any order agreement permission approval determination consent notice proceeding or decision made taken or given by the county council as local planning authority under the said Act of 1947 (except Part II thereof) or having effect as if so made taken or given and in force immediately before the appointed day shall so far as it relates to any land within the added area have effect as if it had been made taken or given by the Corporation as such authority in respect of that land.

(6) Any direction approval consent or decision given by the Minister or the Minister of Transport under or in pursuance of the said Act of 1947 (except Part II thereof) or any enactment thereby repealed affecting the county council as local planning authority and in force immediately before the appointed day

shall in so far as it relates to any land within the added area have effect as if the same had been given to the Corporation as local planning authority.

(7) Where before the appointed day a development plan which contains proposals as to the added area is submitted by the county council under Part II of the said Act of 1947 then if at that day—

(a) a development plan has not been submitted by the Corporation with respect to the whole of their area ; or

(b) a development plan has been approved by the Minister with respect to the whole of their area ;

such proposals shall be deemed to be either a development plan relating to the added area submitted by the Corporation with the consent of the Minister under subsection (5) of section 5 of the said Act of 1947 or (as the case may be) proposals for alterations or additions to the approved development plan and any further proceedings in relation thereto may be taken by the Corporation or the Minister separately from the proceedings on the development plan submitted by the county council.

44.—(1) The clerk of the county council and the clerk of the urban council shall as soon as may be after the passing of this Act and in any case before the appointed day send to the town clerk a copy of every entry in any register of the county council or of the urban council as the case may be under any enactment rule order or regulation for the time being in force which relates to any property matter or thing relating to or which otherwise affects the added area and the town clerk shall include in the appropriate register of the Corporation the particulars respectively furnished by the clerk of the county council and by the clerk of the urban council. Entries in registers.

(2) Subsection (1) of this section shall not extend to any matter for which provision is made in section 42 (Local land charges registers) or section 43 (Town planning) of this Act.

(3) In this section “register” includes any list kept for the purposes of Part II of the Pharmacy and Poisons Act 1933.

45.—(1) As soon as practicable after the appointed day the county council and the urban council shall as regards any cash balances remaining in their hands at the appointed day after deduction therefrom of undischarged debts liabilities and outgoings normally payable which have accrued up to the appointed day estimate the proportion thereof derived from contributions paid by any part of the added area and shall transfer such amount to the Corporation. Apportionment of balances etc.

(2) The county council and the urban council shall pay and discharge all their debts liabilities and outgoings which shall become payable or accrued due in respect of the added area immediately before the appointed day.

(3) The Corporation shall pay and discharge all their debts liabilities and outgoings which shall become payable or accrue due on or after the appointed day in relation exclusively to the added area or any part thereof.

(4) Any sum received on or after the appointed day by the county council or the urban council under a precept issued or rate made before that day in respect of any part of the added area shall be dealt with in the manner prescribed by subsection (1) of this section.

(5) The apportionment under this section of any balance or sum received shall be subject to review on an adjustment under this Act.

Contribution
orders precepts
and arrears of
rates.

46.—(1) Notwithstanding the alteration of areas effected by this Act all contribution orders and precepts made or issued before the appointed day shall be as valid in law as if this Act had not been passed.

(2) All rates not collected immediately before the appointed day in respect of hereditaments within the added area shall be collected and recovered by the Corporation.

(3) Any rates so collected and recovered shall be a matter for adjustment under this Act.

Parish books
and
documents.

47.—(1) All public books writings and papers belonging to the county council or the urban council in relation exclusively to any part of the added area and all documents relating to any part of the added area and directed by law to be kept with the public books writings and papers thereof (except any book or document relating to the affairs of the church or to ecclesiastical charities or to a parochial non-ecclesiastical charity) and all plans papers and writings of the county council and the urban council relating exclusively to any part of the added area shall be deposited in such custody as the Corporation may direct.

(2) Any ratepayer of any existing parish any part of which is comprised in the added area shall at all times have the same right of inspection and of making extracts from the public books writings papers and documents referred to in this section as he would have had if this Act had not been passed.

As to
registration
districts.

48. Nothing in this Act shall affect the area of any existing registration district or sub-district without prejudice however to the exercise of the powers contained in sections 10 and 11 of the Births and Deaths Registration Act 1837 section 21 of the Births and Deaths Registration Act 1874 and sections 24 and 131 of the Act of 1929 as to the alteration thereof.

49. Any alderman or councillor who is to continue in office after the appointed day shall not during his term of office immediately before that day be deemed to lose his qualification for being an alderman or councillor by reason of the alterations of area made by this Act. Saving for qualification of aldermen and councillors.

50.—(1) No alteration effected by this Act in the area of any local or other authority shall cause to abate or shall prejudicially affect or prevent the continuance of any action cause of action or proceeding which immediately before the appointed day is pending or existing by or against any such authority or any contract deed bond agreement or other instrument (subsisting immediately before the appointed day) entered into or made by that authority or their predecessors: Savings for actions contracts etc.

Provided that—

- (a) any action cause of action or proceeding which immediately before the appointed day is pending or existing by or against any such authority in relation exclusively to any part of the added area may be continued prosecuted and enforced by or against the Corporation; and
- (b) all contracts deeds bonds agreements and other instruments (subsisting immediately before the appointed day) entered into or made by any such authority or their predecessors in relation exclusively to any part of the added area shall continue and be in force as fully and effectually as if instead of that authority or their predecessors the Corporation had been a party thereto.

(2) All legal proceedings pending immediately before the appointed day may be amended in such manner as may be necessary or proper in consequence of this Act.

51. Nothing in this Act shall—

- (a) be construed as restricting any power under the Act of 1929 or the Act of 1933 of altering any of the areas or the constitution of any authority or committee;
- (b) alter the area of any constituency or affect the powers of the Corporation or the county council under section 11 of the Representation of the People Act 1949 for the division of a constituency into polling districts for parliamentary elections and the appointment of polling places for parliamentary elections;
- (c) alter the area of any ecclesiastical parish or prejudice vary or affect any power right interest or jurisdiction in over or in connection with any charitable endowment;

Saving provisions.

(d) (save as in this Act expressly provided) affect the provisions of the Rating and Valuation Acts 1925 to 1940 and of Parts III and IV of the Act of 1948 ;

(e) affect land tax.

Power to
borrow.

52.—(1) The Corporation shall have power in addition and without prejudice to their powers of borrowing under the Act of 1933 from time to time to borrow without the consent of any sanctioning authority for and in connection with the purposes mentioned in the first column of the following table the respective sums requisite for those purposes and shall pay off all moneys so borrowed within such periods as the Corporation may determine not exceeding those respectively mentioned in the second column of the said table (namely):—

1	2
Purpose	Period for repayment
(a) The purpose of making any capital payment to any authority under this Act or under any enactment the provisions of which are applied thereby.	Forty-five years from the date or dates of borrowing.
(b) The payment of the costs charges and expenses of this Act.	Five years from the passing of this Act.

(2) The provisions of Part IX of the Act of 1933 so far as they are not inconsistent with this Act shall extend and apply to money borrowed under this section as if it were borrowed under Part IX of the Act of 1933 and the period fixed for the repayment of any money borrowed under this section shall as respects that money be the fixed period for the purposes of the said Part IX.

Saving for
powers of
Treasury.

53. It shall not be lawful to exercise the powers of borrowing conferred by this Act (other than the power of borrowing to pay the costs charges and expenses of this Act) otherwise than in compliance with the provisions of the Local Authorities Loans Act 1945 or of an order for the time being in force made under section 1 of the Borrowing (Control and Guarantees) Act 1946.

Crown rights.

54. Nothing in this Act affects prejudicially any estate right power privilege or exemption of the Crown.

Costs of Act.

55. The costs charges and expenses preliminary to and of and incidental to the preparing applying for obtaining and passing of this Act as taxed and ascertained by the taxing officer of the House of Lords or of the House of Commons shall be paid by the Corporation out of the general rate fund or out of such other funds and in such proportions as the Corporation shall determine or out of money to be borrowed under this Act for that purpose.

SCHEDULES

FIRST SCHEDULE

PART I

Local Acts

Session and chapter	Title or short title
54 Geo. 3 c. cix	An Act for cleansing lighting and otherwise improving certain Streets and Places within and near the Town and Borough of Gateshead in the County of Durham (1814).
18 & 19 Vict. c. cxliii ...	Gateshead Quay Act 1855.
22 & 23 Vict. c. xii ...	Gateshead Quay (Second) Act 1859.
30 & 31 Vict. c. lxxxiii ...	Gateshead Improvement Act 1867.
40 & 41 Vict. c. cxlii ...	Gateshead Improvement Act 1877.
3 Edw. 7 c. cclii	Gateshead Corporation Act 1903.
22 & 23 Geo. 5 c. lxxvii ...	Gateshead Extension Act 1932.
1 & 2 Geo. 6 c. xlii ...	Gateshead Corporation Act 1938.

PART II

Confirmation Acts and Orders

Session and chapter	Short title	Order thereby confirmed
14 & 15 Vict. c. xcvi.	Public Health Supplemental Act 1851 No. 2.	Order relating to Gateshead dated 1st February 1851.
50 Vict. c. xvi	Local Government Board's Provisional Orders Confirmation (No. 10) Act 1886.	Gateshead Order 1886.
8 Edw. 7 c. cxlvi.	Local Government Board's Provisional Orders Confirmation (No. 6) Act 1908.	Gateshead Order 1908.
20 Geo. 5 c. i	Ministry of Health Provisional Orders Confirmation (No. 3) Act 1929.	Gateshead Order 1929.

SECOND SCHEDULE

THE ADDED AREA

So much of the urban district of Felling as is bounded by a line commencing at the point of junction of the eastern boundary of the existing borough (and western boundary of the said urban district) and the southern boundary of the existing borough thence proceeding in a north-easterly direction along the southern boundary of the said urban district to the east corner of the enclosure numbered 93 on the 1/2500 ordnance map of Durham sheet VII.6 (revision of 1938) thence proceeding in a north-westerly direction along the eastern boundary of such last-mentioned enclosure numbered 93 on the same ordnance map and sheet and sheet VII.5 (revision of 1938) to the boundary between such last-mentioned enclosure and the enclosure numbered 7 in the said urban district on the last-mentioned ordnance map and sheet thence proceeding in a northerly and north-westerly direction along the eastern boundary of such last-mentioned enclosure to the boundary between the said enclosure and enclosure numbered 15 in the said urban district on the last-mentioned ordnance map and sheet thence proceeding in a north-westerly direction along the eastern boundary of the enclosure numbered 15 in the said urban district on the last-mentioned ordnance map and sheet to the north-east corner of the said enclosure numbered 15 thence proceeding in a westerly direction along the northern boundary of such last-mentioned enclosure to the boundary between the said enclosure and the enclosure numbered 5 in the said urban district on the last-mentioned ordnance map and sheet thence proceeding in a westerly direction along the northern boundary of enclosure numbered 5 to the boundary between the said enclosure and the eastern boundary of the Ouston and Pelaw wagonway thence proceeding in a westerly direction across the said wagonway to the boundary between the said wagonway and the eastern boundary of the enclosure numbered 16 in the said urban district on the last-mentioned ordnance map and sheet thence proceeding in a westerly direction along the northern boundary of the said enclosure numbered 16 to the boundary between the last-mentioned enclosure and the eastern boundary of the Team Colliery wagonway thence proceeding in a westerly direction across the said wagonway to the boundary between the said wagonway and the eastern boundary of the enclosure numbered 18 in the said urban district on the last-mentioned ordnance map and sheet thence proceeding in a westerly direction along the northern boundary of the enclosure numbered 18 to the eastern boundary of the existing borough (and the western boundary of the said urban district) and thence proceeding in a south-easterly direction along such last-mentioned boundary to the point of commencement.

*Table of Statutes referred to in this Act other than those included
in the First Schedule*

Short title	Session and chapter
Births and Deaths Registration Act 1837 ...	7 Will. 4 & 1 Vict. c. 22.
Births and Deaths Registration Act 1874 ...	37 & 38 Vict. c. 88.
Public Health Act 1875	38 & 39 Vict. c. 55.
Local Government Act 1894	56 & 57 Vict. c. 73.
Newcastle upon Tyne and Gateshead Gas Act 1896	59 & 60 Vict. c. cxxxii.
Public Health Acts Amendment Act 1907 ...	7 Edw. 7 c. 53.
Licensing (Consolidation) Act 1910	10 Edw. 7 & 1 Geo. 5 c. 24.
Land Charges Act 1925	15 Geo. 5 c. 22.
Public Health Act 1925	15 & 16 Geo. 5 c. 71.
Rating and Valuation Act 1925	15 & 16 Geo. 5 c. 90.
Local Government Act 1929	19 & 20 Geo. 5 c. 17.
Sunday Entertainments Act 1932	22 & 23 Geo. 5 c. 51.
Pharmacy and Poisons Act 1933	23 & 24 Geo. 5 c. 25.
Local Government Act 1933	23 & 24 Geo. 5 c. 51.
Public Health Act 1936	26 Geo. 5 & 1 Edw. 8 c. 49.
Local Authorities Loans Act 1945	8 & 9 Geo. 6 c. 18.
Borrowing (Control and Guarantees) Act 1946...	9 & 10 Geo. 6 c. 58.
National Health Service Act 1946	9 & 10 Geo. 6 c. 81.
Town and Country Planning Act 1947	10 & 11 Geo. 6 c. 51.
Local Government Act 1948	11 & 12 Geo. 6 c. 26.
Children Act 1948	11 & 12 Geo. 6 c. 43.
Employment and Training Act 1948	11 & 12 Geo. 6 c. 46.
Criminal Justice Act 1948	11 & 12 Geo. 6 c. 58.
Licensing Act 1949	12 & 13 Geo. 6 c. 59.
Representation of the People Act 1949	12 & 13 Geo. 6 c. 68.
Shops Act 1950	14 Geo. 6 c. 28.

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Gateshead Extension Act, 1953

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24. As to local valuation panels scheme.
25. Orders under Shops Act 1950.
26. Orders under Wild Birds Protection Acts.
27. Sunday Entertainments Act 1932.
28. Transfer of duties under section 1 of Children Act 1948.
29. Orders under section 33 of Act of 1894 and section 271 of Act of 1933.

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- 30. Orders under Public Health Acts Amendment Act 1907 or Public Health Act 1925.
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- 32. Licences certificates exemptions and permits.
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